

25STCV31497 25STCV31497

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV31497 Hearing Date: June 24, 2026 Dept: 316

BACKGROUND

This case is a lemon law

action.

On October 29, 2025, Plaintiff

Woodburn Schofield filed a complaint against Defendant Hyundai Motor America.

The complaint alleges three causes of action stemming from Plaintiff's purchase

of an allegedly defective vehicle.

On May 4, 2026, Defendant

filed a Motion to Strike Portions of Plaintiff's Complaint ("Motion").

On June 10, 2026, Plaintiff

filed an opposition.

On June 16, 2026, Defendant

filed a reply brief in support of the Motion.

TENTATIVE

RULING

Defendant's

Motion to Strike Portions of Plaintiff's Complaint is GRANTED with leave to amend.

Plaintiff

has twenty days to file and serve an amended complaint.

LEGAL

STANDARD

The

court may, upon a motion, or at any time in its discretion, and upon terms

it deems proper, strike any irrelevant, false, or improper matter

inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may

also strike all or any part of any pleading not drawn or filed in conformity

with the laws of this state, a court rule, or an order of the court. (Id.

at § 436, subd. (b).) The grounds for moving to strike must appear on the face

of the pleading or by way of judicial notice. (Id. at § 437.)

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of

cure, leave to amend is routinely and liberally granted to give the plaintiff a

chance to cure the defect in question." (CLD Construction, Inc. v. City

of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on

the complainant to show the Court that a pleading can be amended successfully.

(See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

REQUEST

FOR JUDICIAL NOTICE

Defendant

requests the Court to take judicial notice that Defendant has elected under

Code Civ. Proc., § 871.29, to opt in to the new statutory framework under Part

2, Title 10, Chapter 12 of the Code of Civil Procedure. Defendant attaches a document

from the California Department of Consumer Affairs which lists manufacturers who

have opted in to the new statutory framework. (See RJN, Exh. A.) The Court will

take judicial notice of this fact and attached exhibit under Evidence Code

section 452, subdivision (h).

DISCUSSION

I.

Meet

and Confer

Prior to filing a motion to

strike, the moving party is required to meet and confer with the opposing

party in person, by telephone, or by videoconference. (Code Civ. Proc., §

435.5, subd. (a).) The moving party must then submit a declaration demonstrating their meet and confer efforts. (Id. at § 435.5, subd. (a)(3).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Id. at § 435.5, subd. (a)(4).)

Here, the parties were unable to meet and confer. (See Tahsildoost Decl., ¶ 2.) Therefore, the meet and confer requirement has not been met. (See Code Civ. Proc., § 435.5, subd. (a).) Despite this, the Court will still consider the merits of Defendant’s Motion. (See id. at § 435.5, subd. (a)(4).)

II.

Alleged

Compliance with Code of Civil Procedure section 871.24

The Court holds that Plaintiff

fails to allege compliance with Code of Civil Procedure section 871.24.

Therefore, Plaintiff’s request for civil penalties is stricken from the complaint.

California courts have long

held that when a statute creates a right and attaches specific conditions to

its exercise, those conditions are mandatory. (See *Caliber Bodyworks, Inc. v. Superior Court*, (2005) 134 Cal.App.4th 365, 371 [finding

plaintiff could not plead civil penalties absent alleging compliance with the

statute's pre-filing

notice and exhaustion requirements].)¿¿

Code of Civil Procedure section

871.24 provides that at least thirty days prior to filing suit, a plaintiff

shall, while in possession of the motor vehicle at issue, "(1)¿Notify the manufacturer of the consumer's

name, the accurate Vehicle Identification Number ("VIN")

of the motor vehicle, and a brief summary of the repair history and problems

with the motor vehicle[;

and]¿(2)¿Demand that the manufacturer repurchase or

replace the motor vehicle."

(Code Civ. Proc., § 871.24, subd.

(a).) Failure to do so does not prevent the consumer from filing¿suit, but it does¿bar the recovery of civil penalties. (Id.

at subd. (h).) "Minor deviations

in the notice submitted pursuant to subdivision (a) shall not disqualify

consumers from seeking civil penalties."

(Id. at subd. (b).)¿¿Code

of Civil Procedure section 871.24 became operative on July 1, 2025. (Code Civ.

Proc., § 871.24 ["Effective April 2, 2025. Operative July 1, 2025, by its

own provisions."].)

Here, Plaintiff filed the

complaint on October 29, 2025. Therefore, Code of Civil Procedure section 871.24

was operative by the time the complaint was filed. (See *ibid.*) Thus, to

recover civil penalties, Plaintiff needed to notify Defendant and make the

necessary demand requirements before filing suit. (See Code Civ. Proc., 871.24,

subd. (h).) Plaintiff's complaint does not allege that Plaintiff complied with

Code of Civil Procedure section 871.24. (See generally Complaint.) Without any allegations

of compliance with Code of Civil Procedure section 871.24, Plaintiff cannot

request civil penalties. (See Code Civ. Proc., 871.24, subd. (h).) Accordingly,

Defendant's Motion to Strike is GRANTED.

In opposition, Plaintiff

asserts Plaintiff complied with the requirements listed in Code of Civil

Procedure section 871.24, as evidenced by the supporting declaration. (See

Serrano Decl., ¶ 5.) However, Plaintiff is missing the point – compliance with Code

of Civil Procedure section 871.24 must be alleged in the complaint itself, not

in a supporting declaration submitted in opposition to this Motion. Therefore, the

complaint itself is still insufficient and the request for penalties properly stricken.

Notably, Defendant's assertion in the reply that Defendant did not in fact comply

is also not well taken as it relies on a declaration and website that are

outside of the pleadings and not material of which the Court can take judicial

notice.

The Court finds that the

defect is reasonably capable of cure and therefore the Court grants Plaintiff

leave to amend. (See CLD Construction, Inc. v. City of San Ramon (2004)

120 Cal.App.4th 1141, 1146.)

CONCLUSION

For

the foregoing reasons, Defendant's Motion to Strike Portions of Plaintiff's

Complaint is GRANTED with leave to amend.

Plaintiff may file

and serve an amended complaint within twenty (20) days.